
**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**ORDER REQUIRING PARTIES TO
SERVE ALL CLOSURE OR
RECLASSIFICATION MOTIONS ON
THE MEDIA**

Case No. 251403576

Judge Tony F. Graf, Jr.

Rule 4–202.02 of the Utah Rules of Judicial Administration provides that “[c]ourt records are public unless otherwise classified by this rule.” There is a presumptive right to access public court records. *State v. Allgier*, 2011 UT 47, ¶ 13. However, the public’s right to access “is not absolute.” *Id.* ¶ 14.

Rule 4-202.04 allows a party to file a motion to classify a record as non-public. When a motion to classify a record has been filed, the party filing the motion must serve the motion on any representative of the press who has requested notice in the case. UT R J ADMIN 4-202.04(4).

The court has received requests from The Salt Lake Tribune and its reporter Jessica Miller; St. George News; The Associated Press; Fox13 News; Millard County Chronicle Progress; KOAL (Castle Country Radio); KUER-FM; Lehi Free Press; The Park Record; CBS Broadcasting; The New York Times; CNN; Fox News; and Law & Crime Network (collectively, “Media Intervenors”) for notice of all motions to classify or close records in this case. (Dkt. 164).

The court has also received requests from Deseret News, Deseret Digital Media, Inc. d/b/a KSL.com, KSL-TV, KSL NewsRadio, KUTV 2News, KSTU Fox13, the Utah News Dispatch, and the Utah Headliners Chapter of the Society of Professional Journalists (collectively, News Media) for notice of all motions to reclassify or close records in this case. (Dkt. 150).

The parties filed a joint motion to order a transcript of the October 24, 2025, hearing and to classify both the transcript and audio as private. (Dkt. 154). This is a motion to classify and to close a court record that is subject to the process outlined in Rule 4-202.04.

The parties are ORDERED to serve their motion to classify on the members of the press who have requested notice. The parties must file proof of service with the court.

The court ORDERS that all future motions to classify a record in this case must be served on representatives of the press who requested notice. The parties filing the motion is responsible for service of the motion.

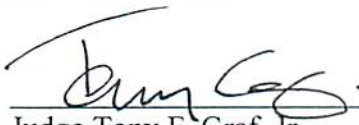
The court is required to hold a closure hearing in the following circumstances: “when a motion or petition to close a record is contested, when the press has requested notice of closure motions or petitions in a particular case, or when the court decides public interest in the record warrants a hearing.” UT R J ADMIN 4-202.04(4).

Because the press has requested notice, the court will set a closure hearing at the earliest date available for all parties, including representatives of the press, to be present. The press has a right to be heard at the closure hearing. Representatives of the press may file their respective positions in writing before the hearing, if desired.¹

In deciding whether to classify a record, the court may consider “any relevant factor, interest, or policy.” Utah R. Jud. Admin. 4-202.04(6).

Dated this 10th day of November, 2025.

BY THE COURT:



Judge Tony F. Graf, Jr.
District Court Judge



¹ This order should not be construed as a ruling on the Motion for Limited Intervention filed by Media Intervenors in docket 164. That motion is subject to further briefing, and the court will not rule until it has received a request to submit for decision.

CERTIFICATE OF NOTIFICATION

I certify that a copy of the attached document was sent to the following people for case 251403576 by the method and on the date specified.

MANUAL EMAIL: KATHRYN NESTER KATHY@NESTERLEWIS.COM

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MANUAL EMAIL: CHRISTOPHER BALLARD CBALLARD@UTAHCOUNTY.GOV

11/13/2025

/s/ TREENA HANSEN

Date: _____

Signature